

probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780.) To satisfy the element of extreme and outrageous conduct, defendant's conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (Id. at 780.) Defendants argue that Plaintiff has not alleged facts from which extreme and outrageous conduct may be inferred as to Defendant McMichael. (Demurrer at p. 20: 9-14; Reply at p. 8: 19-22.) The SAC alleges Defendant McMichael had sexual offensive contact with Plaintiff including sexual intercourse while being aware Plaintiff was a minor. (SAC ¶¶ 13, 48-51.) These allegations add up to enough facts to plead the Defendant McMichael's conduct was so extreme as to exceed all bounds of that usually tolerated in a civilized society.

The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

Conclusion

For the reasons analyzed above, **Defendants' Demurrer is sustained in part and overruled in part. The Demurrer is sustained without leave to amend for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.**

The Demurrer is overruled as to battery, and sexual battery causes of action against Defendant McMichael.

The Demurrer is sustained without leave to amend for the general negligence and NIED causes of actions against Defendants Spencer and McMichael.

The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

12. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
STRIKE PORTIONS OF 2ND AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Defendants The Party Pros Disc Jockey and Event Services, Inc., a California corporation. doing business as Denon & Doyle (also sued incorrectly herein as Denon & Doyle, and Party pros) (defined herein as the "Company" or "Party Pros"); Tyrone Spencer, an individual; Brian Doyle, an individual; Susan Doyle, an individual; and Patrick McMichael, an individual (collectively, Defendants) move the court for an order striking the following allegations from Plaintiff s Second Amended Complaint ("SAC"):

1. Paragraphs 73 and 80 seeking punitive damages as against defendant McMichael.
2. Paragraphs 87 seeking punitive damages as against all defendants.
3. Paragraph 102 seeking punitive damages as against Party Pros.
4. Paragraph 107 seeking punitive damages against defendants McMichael, Brian and

Susan Doyle. and Party Pros.

5. Paragraph 111 seeking punitive damages against all defendants.

6. The request for punitive damages made at item 3 in the prayer for relief.

As explained below, **Defendants' Motion to Strike is granted in part and denied in part. The Court grants all requests to strike punitive damage allegations against Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants, and denies all requests to strike punitive damages against Defendants Spencer and McMichael.**

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion, as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶17:168 (TRG 2023).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Effect of the Demurrer Ruling

The only causes of actions surviving Demurrer are the sexual battery, battery, and IIED claims against Defendants Spencer and McMichael. Thus, the Court grants all requests to strike punitive damage allegations against Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.

Punitive Damages

Civil Code section 3294, which requires clear and convincing evidence that a defendant acted "willfully, maliciously, oppressively, and despicably" or with a conscious disregard of Plaintiff's rights.

Punitive damages, as set forth in the Civil Code section 3294(a), require that "the defendant [is] guilty of oppression, fraud, or malice." "Because punitive damages are imposed 'for the sake of example and by way of punishing the defendant,' they are typically awarded for intentional torts such as assault and battery ... intentional infliction of emotional distress ... nuisance intentionally maintained, [and] fraud" (*Lackner v. North* (2006) 135 Cal. App. 4th 1188, 1212, citing Civil Code 3294(a).)

The Court ruled that Plaintiff has successfully alleged batter, sexual battery, and IIED against Defendants Spencer and McMichael. Since all the successful causes of actions are intentional torts, the Court denies all requests to strike punitive damages against Defendants Spencer and McMichael.

Conclusion

For the reasons analyzed above, **Defendants’ Motion to Strike is granted with leave to amend. The Court grants all requests to strike punitive damage allegations against Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants, and denies all requests to strike punitive damages against Defendants Spencer and McMichael.**

13. 9:00 AM CASE NUMBER: C25-00893

CASE NAME: JESSE DAVIS VS. KATHRYNE DANIELS

FILED BY PLAINTIFF

FILED BY:

TENTATIVE RULING:

Plaintiff Jesse Davis’s Motion for Summary Judgment is **denied**.

Background

This is a breach of contract action arising from a dispute between Plaintiff Jesse Davis and his mother, Defendant Kathryne A. Daniels, over real property located at 2440 Orchard Lane, Martinez (the Property). Plaintiff alleges that in 2011, the parties entered into a contract under which Plaintiff would repay Defendant \$35,000 and make mortgage-related payments over time in exchange for title to the Property. Plaintiff alleges Defendant breached this agreement by instead transferring title into her own trust, and later, in August 2025, conveying title to Plaintiff subject to the “unilateral condition” that property transfer represented the entirety of his inheritance and that he would receive no further distributions from Defendant’s trust. Plaintiff seeks summary judgment in his favor for damages of approximately \$500,000, based on the current market value of the Property. (See Declaration of Plaintiff Jesse Davis filed on May 20, 2026.) Plaintiff's theory appears to be that he is entitled to keep the Property and separately recover its market value in damages, effectively seeking both the house and the equivalent of a further inheritance distribution he claims he was promised.

Defendant opposes the motion, arguing that no enforceable contract ever existed, that she never signed or agreed to the terms reflected in Plaintiff's Exhibit A; and that, in any event, she has already conveyed title to the Property to Plaintiff via grant deed dated August 27, 2025.

Discussion

As a threshold matter, Plaintiff's submissions in support of this motion were handwritten and, in significant part, difficult to read. The Court does not require Plaintiff to use a computer. However, all papers submitted to the Court must be legible. Future filings may be disregarded to the extent the Court cannot determine their contents.

Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each